

**IN THE HIGH COURT OF BOMBAY AT GOA**  
**WRIT PETITIONS NO.506, 557 AND 577 OF 2009 AND**  
**657/2011**

**WRIT PETITION NO.506/2009**

- 1) Marvin S. Gonsalves;
- 2) Noel Monteiro;
- 3) Casiano Menino D'Souza;

All residents of C/o  
Benny D'Souza, Bambolim  
Church Road, P.O. Medical  
Complex, Ilhas - Goa - 403 202.

- 4) Joao Manual Peixoto  
resident of Cardoz Vaddo,  
Taleigao, P.O. Caranzalem,  
Ilhas - Goa- 403 003.  
(REGISTERED ADDRESSES)

... Petitioners.

**VERSUS**

- 1) State of Goa, through the  
Chief Secretary, Alto  
Porvorim, Bardez - Goa.
- 2) The Administrator of  
Comunidades, Central  
Zone, Panaji - Goa.
- 3) Shri Anand Gaunso,  
s/o late Raju Ishwar  
Gaunso, major, married,  
employed at Canara Bank,  
St. Cruz Branch, St.  
Cruz, Tiswadi - Goa.
- 4) Mrs. Deinisis Dias e  
Mergulhao, w/o late Maximo

Mergyulhao,  
Model Residency, First  
Floor, St. Inez,  
Panaji - Goa.

- 5) M/s. Raghurai Tamba, a  
Registered Partnership  
Firm, having its office  
at 'Parimal', Altinho,  
Panaji - Goa, through its  
Partner, Shri Raghurai  
Tamba.
- 6) Shri Pascol Trindade,  
Director, Aldeia de Goa,  
next to Goa University,  
P.O. Goa University,  
Bambolim -Goa- 403 206.
- 7) Comunidade of Bambolim,  
by its Special Power of  
Attorney, Shri Jeronimo  
Manuel Monteiro, resident  
of Bambolim Church Road,  
P.O. Medical Complex,  
Ilhas - Goa- 403 202.
- 8) Pundalik Cuncolkar, s/o  
late Parshuram Cuncolkar,  
major, married, service;  
and his wife,
- 9) Sumati Pundalik Cuncolkar,  
major, service,  
Both residents of Palem,  
Siridao, Tiswadi - Goa.
- 10) Ganga alias Shobha Vasudev  
Narvekar, w/o late Vasudev  
Narvekar, major, daughter  
of late Parshuram  
Cuncolkar, married,  
housewife;

- 11) Mamtha Vasudev Narvekar,  
d/o late Vasudev Narvekar,  
major, unmarried, Service,  
Both residents of Goa  
Velha, Tiswadi- Goa.
- 12) Kensar Manuel Pereira  
alias Kunkolikar, wife  
of Manuel Pereira,  
d/o late Parshuram  
Cuncoikar, major,  
Married, housewife;
- 13) Manuel Pereira, s/o late  
Joaquim Pereira, major in  
age, married, service,  
Both residents of Cacara,  
St. Cruz, Ilhas - Goa.
- 14) Mrs. Rukmini Bhikaro Gauns  
Gomes, w/o late Bhikaro  
Gauns alias Gomes, major,  
housewife, resident of Modlowado,  
Siridao, Palem,  
Tiswadi - Goa.
- 15) Geeta Prakash Narvekar,  
w/o. Prakash Narvekar,  
d/o late Bhikaro Gauns  
alias Gomes, major;
- 16) Prakash Narvekar, major  
in age, married,  
Government Servant,  
Indian National,  
Both residents of Taleigao,  
Tiswadi - Goa.
- 17) Chandrika Bhikaro Gauns  
alias Gomes alias Lotlikar,  
d/o late Bhikaro Gauns  
alias Gomes, major,

resident of Modlowado,  
Siridão, Palem, Tiswadi - Goa.

- 18) Mr. Madhu Cuncolkar alias  
Cuncolkar alias Cancolkar,  
s/o Laximan Cuncolkar,  
major, service;
- 19) Mrs. Succorina Madhu  
Cuncolkar alias Cancolkar  
alias Manisha Madhu  
Cuncolkar alias Cancolar, major,  
housewife,  
Both residents of Modlowado,  
Siridao, Palem, Tiswadi,  
Goa.
- 20) Mr. Rama Gomes alias  
Lotlikar, s/o Sebastiao  
Gomes, major, service;
- 21) Smt. Sita Rama Gomes alias  
Lotlikar, housewife,  
Both residents of Palem,  
Siridao, Tiswadi-Goa.

... Respondents.

Mr. Rohit Bras De Sa, Advocate for the Petitioners.

Mr. P. Talaulikar, Additional Government Advocate for  
Respondent no.1.

Mr. V. A. Lawande, Advocate for Respondent no.2.

Mr. A.N.S. Nadkarni, Senior Advocate with Mr. D. Lawande,  
Advocate for Respondents No.5 and 6.

**WITH**  
**WRIT PETITION 557/2009**

1. Marvin S. Gonsalves
2. Noel Monteiro

3. Casioano Menino D'Souza  
C/o Benny D'Souza  
All residents of Bambolim  
Church road, P.O.  
Medical Complex, Ilhas-  
Goa- 403202

4. Joao Manuel Peixoto  
Taleigao, Cardoz Vaddo  
P.O. Caranzalem  
Ilhas-Goa-403003

PETITIONERS

Versus

1. State of Goa  
Through the Chief Secretary  
Alto Porvorim, Bardez, Goa.
2. The Administrator of  
Comunidade, North Goa,  
Panaji, Goa.
3. M/s. Raghurai Tamba,  
A registered partnership firm  
Having its Office at  
"Parimal", Altino,  
Panaji-Goa Through its  
Partner Shri Raghurai Tamba
4. Shri Pascol Trindade,  
Director, Aldeia de Goa,  
Next to Goa University,  
P.O. Goa University,  
Bambolim, Goa- 403206.
5. Shri Sebastiao J. Botelho,  
Resident of Cujira,  
Santa Cruz,  
Goa 403 005.
6. Shri Anand Gawas,  
C/o Canara Bank,  
Santa Cruz, Goa  
403 005.
7. Shri Gonsalo Dias Sapeco

Bambolim Church Road,  
P.O. Medical Complex  
Ilhas-Goa-403202

8. Mrs. Dionisia Dias E. Mergulhao  
Wife of Late Maximo Mergulaho  
1<sup>st</sup> Floor, Model Residency,  
St. Inez, Panaji, Goa.

9. Comunidade of Bambolim,  
Through its Attorney,  
Bambolim-Goa

RESPONDENTS.

Mr. Rohit Bras. De Sa, Advocate for the petitioners.

Mr. P. Talaulikar, Additional Government Advocate for  
respondent no.1.

Mr. V. A. Lawande, Advocate for respondent no.2.

Mr. A. N. S. Nadkarni, Senior Advocate with Mr. D. Lawande,  
Advocate for respondents no.3 and 4.

**WITH**  
**WRIT PETITION NO.577/2009**

1. Marvin S. Gonsalves
2. Noel Monteiro
3. Casiano Menino D'Souza  
C/o Benny D'Souza  
All residents of Bambolim  
Church road, P.O.  
Medical Complex, Ilhas-  
Goa- 403202
4. Joao Manuel Peixoto  
Taleigao, Cardoz Vaddo  
P.O. Caranzalem  
Ilhas-Goa-403003

PETITIONERS

Versus

1. State of Goa  
Through the Chief Secretary

Alto Porvorim, Bardez, Goa.

2. The Mamlatdar,  
Tiswadi Taluka,  
Panaji, Goa.
3. Administrator of Comunidade  
Central Zone, Panaji, Goa.
4. M/s. Raghurai Tamba  
A registered partnership firm  
Having its Office at  
"Parimal", Altino,  
Panaji-Goa Through its  
Partner Shri Raghurai Tamba.
5. Comunidade of Bambolim  
Through its Special Attorney.  
Bambolim.
6. M/s. Confraria De Fundo Da Cruz  
A religious Institution attached  
to the Holy Cross Shrine  
(Bambolim Flower Cross  
Shrine), Alto Bambolim, Goa  
Represented by its President  
Rev. Fr. Natalino Peter Raj. .. RESPONDENTS

Mr. Rohit B. De Sa, Advocate for the petitioners.

Mr. P. Talaulikar, Additional Government Advocate for  
respondents no.1 and 2.

Mr. V. A. Lawande, Advocate for respondent no.3.

Mr. A. N. S. Nadkarni, Senior Advocate with Mr. D. Lawande,  
Advocate for respondent no. 4.

**WITH**  
**WRIT PETITION NO.657/2011**

- 1) MARVIN S. GONSALVES,  
Major of age,  
r/o Bambolim Church Road,  
P.O. Medical Complex,  
Bambolim, Ilhas - Goa.

2) CASIANO MENINO D'SOUZA,  
Major of age,  
r/o Bambolim Church Road,  
P.O. Medical Complex,  
Ilhas - Goa.

3) JOAO MANUAL PEIXOTO  
major of age,  
r/o Taleigao, Cardoz Vaddo,  
P.O. Caranzalem,  
Ilhas - Goa- 403 003.

.. PETITIONERS

VERSUS

1) STATE OF GOA,  
Through its Chief Secretary,  
Secretariat, Alto Porvorim,  
Bardez - Goa.

2) DEPUTY COLLECTOR & SDO,  
OF TISWADI,  
Panaji - Goa.

3) MAMLARDAR OF TISWADI TALUKA,  
Panaji, Goa.

4) CHIEF TOWN PLANNER,  
Town & Country Planning Department,  
Dempo Towers, Patto,  
Panaji - Goa.

5) COMMUNIDATE OF BAMBOLIM,  
Bambolim, Ilhas (Tiswadi)

6) SHRI RAGHURAI TAMBA,  
Major of age,  
r/o Parimal, Altinho,  
Panaji - Goa.

7) SHRI PASCOAL TRINIDATE,

Major of age,  
Director, Aldeia de Goa,  
Near Goa University,  
Bambolim -Goa.

- 8) SHRI SEBASTIAO J. BOTHELO,  
(Since deceased) Through legal heirs

- a) SMT. ANTONIA ARAUJO,  
major of age,  
r/o cujira, St. Cruz, Tiswadi Goa.

- b) MRS. NATIVIDADE ELEUTERINA  
FERNANDES  
Major of age,  
r/o Blunceu, Porsulem, Canacona Goa.

- c) KUMARI NATASHA,  
Major of Age,  
Through Natividade Eleuterina  
Fernandes,  
r/o Blunceu, Porsulem, Canacona Goa.

- 9) SHRI KHUKU GAUNS,  
Major of age,  
r/o St. Cruz, Ilhas Goa.

- 10) SHRI ANAND GAUNS,  
Major of age,  
r/o C/o. Canara Bank,  
Sr. Cruz, Ilhas Goa.

- 11) SMT. DIONISIA DIAS e MERGULHAO  
Alias DIONISIA DIAS  
Major of age,  
r/o. 1<sup>st</sup> Floor, Model Residency,  
St. Cruz, Ilhas Goa.

- 12) SHRI GONSALO DIAS SAPECO  
r/o. Bambolim Church Road,  
P.O. Medical Complex,  
Bambolim, Ilhas - Goa.

... RESPONDENTS

Mr. Rohit Bras De Sa, Advocate for the Petitioners.

Mr. P. Talaulikar, Additional Government Advocate for Respondents no.1 to 4.

Mr. A. N. S. Nadkarni, Senior Advocate with Mr. D. Lawande, Advocate for Respondent No. 6.

Mr. Harshad Bhadbade with Mr. R. Rao, Advocates for Respondent No. 7.

Mr. J. Vaz, Advocate for Respondent No. 8(b).

**CORAM :- S. C. DHARMADHIKARI &**

**U. V. BAKRE, JJ.**

**Reserved on : 6<sup>th</sup> March, 2012.**

**Pronounced on : 29<sup>th</sup> March, 2012.**

**ORDER: (Per U. V. Bakre)**

The above writ petitions filed under Articles 226 and 227 of the Constitution of India pertain to the same subject matter and involve common questions of facts and law and hence, are disposed of by this common judgment.

2. In the Writ Petition No. 506/2009, the petitioners have prayed as under :

(A) This Hon'ble Court be pleased to issue a writ of mandamus or a writ in the nature of

mandamus or any other appropriate writ, order or direction, directing the Collector to revoke Conversion Sanad bearing No. CNV/TIS/41/90.

(B) This Hon'ble Court also be pleased to issue a writ of certiorari or a writ in the nature of certiorari or any other appropriate writ, order or direction, calling for the records and proceedings in Special Civil Suit No. 128/1982/A; Special Civil Suit No. 15/2001/A and Special Civil Suit No.222/1994/B, and after considering the legality and propriety of the Judgments and Decrees, be pleased to quash and set aside the same;

(C) This Hon'ble Court also be pleased to issue a writ of mandamus or a writ in the nature of mandamus or any other appropriate writ, order or direction, directing the Collector to decide the question in Case No. ILL/CNV/19/2009/881, whether there was any tenancy on the date on which the Goa Land Use Regulation, 1991 came into force; and whether any 'illegal conversion had taken place in respect of the said lands;

(D) This Hon'ble Court also be pleased to issue a writ of Prohibition or a writ in the nature of Declaration or any other appropriate writ, order or direction, directing the Deputy Collector not to consider the Judgments and

Decrees made in Special Civil Suit No. 128/1982/A; Special Civil Suit No. 15/2001/A and Special Civil Suit No. 222/1994/B, as the same are illegal, void ab-initio; and furthermore; not to consider conversion sanad bearing no. CNV/TIS/41/90 whilst proceeding with the inquiry in terms of the directions given by the Hon'ble High Court in Writ Petition No. 102/2009;

3. In Writ Petition No.557/2009, the prayer are as follows :

(A) This Hon'ble court may be pleased to issue a Writ of Mandamus or any other Writ, Order or Direction directing the Administrator of Comunidade to comply with the direction of the High Court made in Writ Petition No.102/09 and redress the grievances of the Petitioner.

(B) For a Writ of Mandamus or any other Writ Order or Direction under Articles 226 and/or 227 of the Constitution of India directing the Administrator to exercise his powers under Article 371 of the Code of Comunidade and to remove and demolish all the illegal construction constructed in the Comunidade land bearing survey Nos.89/3, 90/1, 93/2, 93/3 and 93/4 of Bambolim Village.

(C) For a Writ of Certiorari or any other Writ Order or direction calling for the records and proceedings before the Administrator of Comunidade and after considering the legality, correctness and propriety of the Order dated 3.7.2009, this Hon'ble Court may be pleased to issue a Writ of Certiorari to quash and set aside the Order dated 3.7.09 and to Order/direct the Administrator of Comunidade to take action under Article 371 of the Code of Comunidade against Respondent Nos.3, 4, 5, 6, 7 and 8.

D) That the Petitioners are entitled for a Writ of Mandamus or any other appropriate Writ, Order of Direction in the nature of Mandamus to direct the Collector or the Administrator of Comunidade to initiate proceedings under the Goa Land (Prohibition) Act against Respondent Nos. 8 to 13 and to prevent and demolish the illegal construction put up by Respondent Nos.10, 11, 12, and 13 and to further prevent Respondent Nos.8 to 13 from carrying out any further construction in Survey Nos.89/3, 90/1, 93/2, 93/3 and 93/4 of Bambolim Village.

(E) That the Petitioners are entitled for a Writ of Mandamus or any other appropriate Writ, Order or Direction in the nature of Mandamus to direct the Respondents authorities to stop all

further construction in the properties surveyed under Survey Nos.89/3, 90/1, 93/2, 93/3 and 93/4 of Bambolim Village.

(F) That the Petitioners are entitled for a Writ of Certiorari or any other appropriate Writ, Order or Direction in the nature of Mandamus to recall/ revoke and cancel the construction license in the property surveyed under Survey Nos.89/3, to Mr. Sebastiao Botelho.

(G) That the Petitioners are entitled for a Writ of Mandamus or any other appropriate Writ, Order or Direction in the nature of Mandamus to order demolition of the illegal structure erected by Mr. Sebastiao Botelho in Survey Nos.89/3 in terms of the Notice for demolition issued by the Administrator of Comunidade.

(H) That the Petitioners are entitled for a Writ of Mandamus or any other appropriate Writ, Order or Direction in the nature of Mandamus to quash and set aside the mutation done in respect of Survey Nos.89/3, 90/1, 93/2, 93/3 and 93/4 of Bambolim Village deleting the names of the tenants.

(I) That the Petitioner is also entitled for a Writ of Mandamus or any other appropriate Writ, Order or Direction in the nature of Mandamus to direct Respondent Nos. 8, 9, 10,

11, 12 and 13 to stop all construction in Survey Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of Bambolim Village.

4. The petitioners in the Writ Petition No.577/2009 have prayed as under :

(A) That the Petitioners are entitled for a Writ of Mandamus or any other Writ, Order or Directions that the land surrendered by the tenants i.e. Survey No.90/1 be disposed off in the manner provided under sub section 2 of Section 18J of the Agricultural Tenancy Act, 1964.

(B) That the Petitioners are entitled for a Writ of Mandamus or Writ in the nature of Mandamus or any other appropriate Writ, Order or Direction directing the State of Goa, Dy. Collector and SDO and the Mamlatdar to comply with the directions issued by the Hon'ble High Court made in Writ Petition No.213/1998 and immediately stop the transfer of agricultural tenanted land under the provisions of the Goa Land Use (Regulations) Act, 1991, Goa Land Revenue Code and the Goa, Daman and Diu Agricultural Tenancy Act.

(C) That the Petitioners are entitled for a

Writ of Mandamus or a Writ in the nature of Mandamus or any other appropriate Writ, Order or Direction directing the State of Goa, Dy. Collector and the Mamlatdar, Tiswadi Taluka to comply with the directions issued by the Hon'ble High Court in Writ Petition No.213/1998 and Writ Petition No.304/2000 and conduct an inquiry whether Respondent no.4, M/s. Raghurai Tamba has got a title to sell agricultural tenanted property and further more, to examine whether there was any tenancy in survey No. 90/1 of Bambolim village on the date on which the Goa Land Use (Regulations) Act, 1991 came into force and whether any illegal conversion had taken place.

5. Lastly in Writ Petition No.657/2011, the following are the prayers :

(A) For a Writ of Mandamus or a Writ in the nature of Mandamus or any other Writ Order or direction directing the Respondents State authorities No. 2 & 3 to identify and demarcate the Agricultural Tenant Properties as per the tenancy declaration orders dated 10/12/1971 and 20/12/1971 in Case bearing Nos. CAJ/ARC/PRC/10/END-11/71 and CAJ/ARC/18/71.

(B) For a Writ of Mandamus or a Writ in the

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nature of Mandamus or any other appropriate Writ Order or direction commanding the Respondents No.1, 2 & 3 to take action under section 10 of the Agricultural Tenancy Act and transfer the land bearing Survey Nos. 89/3, 90/1, 93/2, 93/3 & 93/4 of Bambolim Village to the Government or to the Comunidade of Bambolim.

(C) For a Writ of Mandamus or a Writ in the nature of Mandamus or any other appropriate Writ, Order or direction, directing an inquiry into the functioning of the Respondent No.5 the Comunidade of Bambolim especially with regard to Survey Nos. 89/3, 90/1, 93/2, 93/3 & 93/4 of Bambolim Village

(D) For a Writ of Mandamus or a Writ in the nature of Mandamus or any other appropriate Writ, Order or direction, directing the Respondent No.1 to take over the management of the Respondent no.5 the Comunidade of Bambolim.

(E) For a Writ of Mandamus or a Writ in the nature of Mandamus or any other appropriate Writ Order or direction, directing the Respondents not to proceed with any developmental works or transfer the title or create any third party rights upon Survey No.89/3, 90/1, 93/2, 93/3 & 93/4 of Bambolim

Village.

(F) For a Writ of Mandamus or a Writ in the nature of Mandamus or any other appropriate Writ Order or direction, directing the Respondents No.3 to produce all the records pertaining to the tenancy status of land bearing Survey No. 89/3, 90/1, 93/2, 93/3 & 93/4 of Bambolim Village.

(G) For a Writ of Mandamus or a Writ in the nature of Mandamus or any other appropriate Writ Order or direction, directing the Respondents No. 1, 2 & 3 to treat this as a case of violation of the Agricultural Tenancy Act, the Goa Land Use Act and the Code of Comunidade and to take appropriate action thereupon.

(H) For a Writ of Mandamus directing the Respondent Nos. 6 & 7 not to proceed with any allotment of the proposed plots in Survey Nos. 89/3, 90/1, 93/2, 93/3 & 93/4 of Bambolim Village.

6. The petitioners claim to be Gaunkars of the Comunidade of Bambolim and say that under the Code of Comunidades, they are entitled to file litigation to protect and preserve the land belonging to the said Comunidade.

7. The petitions pertain to the properties bearing Survey nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of village Bambolim. According to the petitioners, the said properties belong to the Comunidade of Bambolim. They say that the property "OROS" bearing Lot No. 43, as per Tombassao Book No. 1, admeasuring 37,975 square metres, belongs to the Comunidade and it bears survey nos. 89/3 and 90/1 whereas the property known as "SAVELI GALI", bearing Lots no. 47, 48 and 49, as per Tombassao Book No.1, admeasuring 97,500 square metres, also belongs to the Comunidade and bears survey nos. 93/2, 93/3 and 93/4.

8. The petitioners, in short, have stated as under ;

On 20/12/1971, late Raiu Ishwar Gaunso from Bambolim obtained a declaration of tenancy through case No. CAJ/ARC/PRC/18/71 from Mamlatdar of Tiswadi by making late Salvador Bartolomeu Monteiro along with the Comunidade of Bambolim as parties to the said proceedings, in respect of cashew garden known as 'OROS' situated at Bambolim. On 12/12/1971, various persons namely Parshuram Cuncolkar, Luis Rosario, Sebastiao Gomes

and Bicario Gomes obtained declaration as deemed tenants of the cashew garden namely (a) "SAVELI GALI SEGUNDO LANSO" and (b) 'SAVELI GAL TERCEIRO LANCO'. These tenanted lands are situated within the property belonging to the Comunidade bearing Survey nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of Bambolim village. Thereafter, the tenant Raiu Ishwar Gauns filed Special Civil Suit No.128/1982/A before the Court of Civil Judge, Senior Division at Panaji and by judgment dated 06/08/1986, the Comunidade of Bambolim was directed to pay to the said Raiu Gauns, a sum equivalent to 50 % compensation received by the Comunidade of Bambolim under the Land Acquisition Act with interest at the rate of 6 % p.a. This judgment was made primarily on the ground that Raiu Ishwar Gauns was declared as a deemed tenant by the Mamlatdar in respect of Cashew garden situated in Survey nos. 89/3 and 90/1 of Bambolim village. It came to light that a collusive suit was filed by Mrs. Dionisia Dias e Mergulhao Vs. Raiu Ishwar Gauns bearing Special Civil Suit No.15/2001/A which came to be decreed on admissions and the name of Raiu Ishwar Gauns was ordered to be deleted from Forms No. I and XIV of Survey No.90/1, as a tenant. The Comunidade of Bambolim had also filed Special Suit No.222/1994/B against late Maximo Mergulhao

before the Court of Civil Judge, Senior Division at Panaji and this suit was compromised by filing consent terms whereby the suit property was agreed to be developed and plots were agreed to be allotted to the parties. The Comunidade of Bambolim had no authority in law to give consent and to agree with any party to develop, sell or agree to sell or agree to permanently alienate the Comunidade's lands without prior permission of Government of Goa or the prior consent or permission of a President of the Administrative Tribunal. The said judgment and decree passed in, Special Civil Suit No.222/1994/B is dated 21/11/1998. Another suit being Regular Civil Suit No.6/2007/C was filed in the Court of Civil Judge, Junior Division, Panaji by Pascoal Trindade against the legal representatives of Parshuram Cuncolkar, Luis Rosario, Sebastiao Gomes and Bicarior Gomes and in this suit also consent terms were filed and the persons who were declared as tenants made a declaration before the Civil Court that their names have been erroneously recorded as tenants in tenant's column. The said judgments and decrees were obtained by fraud and collusion by respondents no.3 to 21 and the petitioners came to know about this fraud when such respondents filed their replies in case No. ILL/CNV/19/2009-881 before the Deputy Collector and S.D.O., Panaji who was

conducting an inquiry pursuant to the directions given by Hon'ble High Court in Writ Petition No.102/2009. The parties in Special Civil Suit No.15/2001/A and Regular Civil Suit No.6/2007/C have grossly abused the process of the Civil Court as there is prohibition imposed by the Goa Land Use (Regulation) Act. The aforesaid tenants could not have obtained declaration before the Civil Court to delete their names from the tenant's column. On the basis of the declaration obtained by the respondents no. 3 to 21 before the Civil Court in the decrees made in Special Civil Suit No.128/1982/A, Special Civil Suit No.15/2001/A and Regular Civil Suit No.222/1994/B, the Collector has issued conversion sanad. The petitioners, being aggrieved by the said consent decrees in the Special Civil Suits and refusal of the Collector in deciding the case No.ILL/COV/19/2009/881 regarding the questions whether there was any tenancy on the date on which the Goa Land Use (Regulation) Act, 1991 came into force and whether any illegal conversion had taken place in respect of the said lands, filed Writ Petition No.506/2009.

9. According to the petitioners, further facts came to their knowledge, which have been stated by them in Writ Petition No.557/2009 and they are;

On 25/04/2006, three sale deeds were made by the tenants in favour of Raghurai Tamba. On 21/12/2004, a sale deed was executed by the tenant in favour of Mr. Sebastiao Bothelho with respect to Survey No. 89/3 of Bambolim village. On 05/09/2007, construction licence was granted by the Village Panchayat of Bambolim to Mr. Sebastiao Bothelho with respect to said Survey No.89/3 at Bambolim village. On 12/12/2008, the Administrator of Comunidades Central Zone, Panaji issued show cause notice to Mr. Sebastiao Bothelho with respect to illegal construction in the said Survey No. 89/3 of Bambolim village and a direction for demolition of the same. However, since the Administrator of Comunidades did not take any further action, the petitioners, in January, 2009, filed Writ Petition No.102/2009. This Court disposed of the said Writ Petition No.102/2009 by directing the Administrator of Comunidades and the Collector to inquire into the grievances of the petitioners and thereafter to pass appropriate orders, in any case not later than six weeks and preferably after giving the petitioners hearing in accordance with law. On 22/05/2009, the Administrator of Comunidades issued a letter to the petitioners to remain

followed. On 11/09/2009, the petitioners made a representation to the Mamlatdar and Deputy Collector, S.D.O. at Panaji to immediately stop the sale of the property under Survey No.90/1 of Bambolim Village as the same has been declared to be an agricultural tenanted property by the Mamlatdar and that the orders of the Civil Court is without jurisdiction. Therefore, for appropriate further reliefs, Writ Petition No.577/2009 came to be filed.

**11.** Writ Petition No.102/2009 was disposed of with a direction to the Administrator and to the Collector to conduct enquiries regarding alleged illegal, unauthorised constructions carried out by private respondents on the agricultural land and without compliance of any statutory provisions. The Deputy Collector and S.D.O. at Panaji started enquiry under Case No. ILL/CNV/TIS/19/2009 and in the course of enquiry, the Mamlatdar under cross-examination stated that the declarations of tenancy made in Case No.CAJ/ARC/PRC/18/71 dated 20/12/1971 and Case No.CAJ/ARC/PRC/10/71 and 11/71 dated 10/12/1971 are not traceable and that the xerox copies of the same produced on record are bogus.

12. On 04/01/2009, an application was made by the petitioners before the Deputy Collector and S.D.O. for direction to the Mamlatdar to produce records pertaining to the tenancy, before the Deputy collector, in the said enquiry. The application came to be rejected by the Deputy Collector and S.D.O., constraining the petitioners to file Writ Petition No.9/2010, which came to be disposed of, *inter alia*, by directing the Deputy Collector and S.D.O. to conduct enquiry and ascertain as to how the orders are not traceable in the office. In the said writ Petition No. 9/2010, it was further directed that the certified copy of the document at exhibit PW1/A, produced in Special Civil suit No. 128/1982, should be produced before the Deputy Collector and S.D.O. who should treat the same as true certified copy of the said document. On 01/08/2011, the said case no. ILL/CNV/TIS/19/2009/881 came to be concluded. Aggrieved by the said order dated 01/08/2011 made in the case no. ILL/CNV/19/2009/881, on the ground that the Deputy Collector and S.D.O. has deliberately refused to comply with the direction made by this Court in Writ Petitions no.102/2009 and 9/2010, the petitioners filed Writ Petition No.657/2011.

13. The Attorney of the Comunidade, namely Felix Monteiro has filed Affidavit-in-reply in the Writ Petitions No. 506/2009 and 577/2009. He has stated as under:

The Comunidade of Bambolim is the owner of the properties surveyed under no. 89/3, 90/1, 93/2, 93/3 and 93/4 of village Bambolim. On 1/12/1994, the Comunidade filed the Special Suit NO. 222/1994/A, for declaration of ownership, against Maximo Margulhao, in respect of survey no. 89/3. On 19/11/1998, compromise terms came to be filed in the said suit, without approval/resolution of the General Body and without approval of the Administrative Tribunal, as required under the Code of Comunidades. By the said compromise terms, the Comunidade relinquished their claim to the properties surveyed under nos. 89/3, 90/1, 93/2, 93/3 and 93/4 admeasuring about 1,35,000 square metres, in favour of the legal representative of deceased Maximo Mergulhao, namely Mrs. Dionisia, for consideration of 5 plots of developed land to be allotted to the Comunidade and 40 plots to be allotted to the Gaunkars of the Comunidade of Bambolim. The Special Attorney of the Comunidade had conspired with Mrs. Dionisia Dias e Mergulhao and Raghurai Tamba to compromise the said suit and thus to cheat the Comunidade.

14. The private respondents, who have purchased the said properties for the purpose of development and construction, namely Pascoal Trinidade and Raghurai Tamba have filed their affidavits-in-replies,

15. It is the case of Shri Pascoal Trinidade that vide registered conveyance deed dated 25/04/2006, he became the owner of the properties bearing Survey nos. 93/2, 93/3 and 93/4 and since then, he is in occupation and physical possession of the said properties and is the bonafide purchaser of the same. The said properties were not owned by the Comunidade. At no point of time, the property was mutated in the name of Comunidade and at no point of time, the name of Comunidade was entered into the revenue records. The said properties bearing Survey No.93/2, 93/3 and 93/4 were and are the private properties and Shri Pascoal Trinidade purchased them from previous owners for valuable consideration. Since it was found that certain names were erroneously entered in the tenant's column by the Revenue Authorities without following any procedure prescribed by law, he filed Civil Suit against Pundalik Kunkolkar and 13 others bearing Regular Civil Suit

No.6/2007/C before the Court of Civil Judge, Junior Division, Panaji for declaration that Pascoal Trindade is the exclusive owner in possession and enjoyment of the properties bearing Survey Nos. 93/2, 93/3 and 93/4 admeasuring about 97,500 square metres and for deleting erroneous entries in the tenant's column on survey records. The said suit was decreed by judgment and order dated 25/01/2007, *inter alia*, holding Shri Pascoal Trindade as the owner of the said properties bearing Survey Nos.93/2, 93/3 and 93/4. The persons, who were made defendants in that suit, admitted that their names were wrongly recorded as tenants and that they were never tenants of those properties. At the relevant time, there was a G.R. issued by the Government of Goa stating that only the Civil Courts have jurisdiction and, therefore, Shri Pascoal Trindade was advised to file civil suit. Pursuant to the said decree in the Regular Civil Suit No.6/2007/C, the said persons and the legal heirs, whose names were erroneously recorded in the survey records approached the Deputy Collector and filed an application under Section 103 of the Land Revenue Code, 1968 admitting that Shri Pascoal Trindade is the owner of the properties bearing Survey Nos.93/2, 93/3 and 93/4 and that their names were wrongly recorded in the tenant's column and requesting to delete the

same. The said application was treated as Case No. LRC/COR/8/2007 and after conducting a detailed enquiry, the Deputy Collector and S.D.O. by judgment and order dated 03/04/2007 allowed the said application and directed the Mamlatdar of Tiswadi to delete the said names from Survey Records. The Mamlatdar of Tiswadi, accordingly, carried out the deletion of the said names. Shri Parshuram Kunkolkar and others were not declared tenants with respect to the properties bearing Survey Nos. 93/2, 93/3 and 93/4 either by order in Case No. CAJ/ARC/PRC/18/71 or Cases No. CAJ/ARC/PRC/10/77 and 11/71. The Comunidade of Bambolim had filed the suit being Special Civil Suit No.222/1994/B against one Mergulhao since deceased through L.R. Mrs. Dionisia Dias e Mergulhao for declaration that the property surveyed under No.89/3 is part of the property name 'OROS' belonging to the Comunidade. Vide consent decree dated 21/11/1998, the said suit was compromised and decreed. The said suit was filed by the Jeronimo Monteiro, Special Attorney of the Comunidade and it was filed only in respect of Survey No.89/3 and in compromise, the Comunidade agreed to take 45 plots in Survey Nos. 93/2, 93/3 and 93/4. If the case of the petitioners is assumed to be correct and the said properties

exclusively belong to Comunidade, one fails to understand as to why the Comunidade would settle to take 45 plots in their own property. This shows that the Comunidade never owned Survey nos. 93/2, 93/3 and 93/4. Pursuant to the decree, the development work is carried out by Shri Raghurai Tamba in Survey No.89/3 only. The suit between the said Mergulhao since deceased through L.R. Mrs. Dionisia Dias e Mergulhao and Comunidade was only in respect of the property bearing Survey No. 89/3 and the Comunidade had never claimed the properties bearing Survey Nos. 93/2, 93/3 and 93/4 in the said suit or at any time in the past or thereafter.

16. It is further stated by Pascoal Trinidade as follows: The development activities commenced in Survey No.89/3 in the year 1993 and after the conversion sanad was issued by the Collector. Subsequently, road, gutter and even some construction has come up in the said property. No efforts were made by the office of the Comunidade or any Gaunkars to recover the possession of the said properties or to get the properties bearing Survey Nos.93/2, 93/3 and 93/4 entered in the name of the Comunidade. The Forms No. I and XIV of properties bearing Survey Nos.93/2, 93/3 and 93/4

show the name of private persons as the owners of the properties. The Deputy Collector, after carrying out the detailed inquiry as ordered by this Court, has come to the conclusion that the orders in Case nos. No. CAJ/ARC/PRC/18/71 or Case No. CAJ/ARC/PRC/10-11/71 supposedly filed by Raiu Ishwar Gauns and Parshuram Kunkolkar and others respectively against the Comunidade do not and cannot pertain to the properties bearing Survey Nos. 93/2, 93/3 and 93/4. The learned Deputy Collector has also rightly recorded that the entries made in the column, without there being declaration under Section 7 of the Tenancy Act, can be deleted and there is no bar to approach the Civil Court. The petitioners have failed to produce any documentary evidence to show that the properties bearing Survey Nos. 93/2, 93/3 and 93/4 were owned by the Comunidade at any time. The learned Deputy Collector has taken into consideration all the directions passed by this High Court in Writ Petition No. 102/2009 and Writ Petition No. 9/2010. The petitioners had produced various documents before the Deputy Collector. The certificate of Comunidade of Bambolim, issued after examining the registered book 'Tombo' which speaks about the properties of the Comunidade namely Lote No. 47, Lote No. 48 and first

Lote No.48 and second Lote and Lote No.49 shows that the total area comes to about 34,571 square metres. Therefore, this document does not take the case of the petitioners any forward as it is not reflected from this document that Survey Nos. 93/2, 93/3 and 93/4 were owned by the Comunidade., In fact, all the documents produced by the petitioners before the Deputy Collector were not of any assistance to the petitioners to prove that Survey Nos. 93/2, 93/3 and 93/4 were owned by the Comunidade of Bambolim. The petitioner himself is the President of the Comunidade of Bambolim and has suppressed this fact from this Court and has chosen to litigate in his own name. The petitioner became the President of respondent no. 5 in April, 2010 much prior to the filing of Writ Petition No.657/2011. The petitioners have suppressed the order dated 19/09/2011 passed by this Court in the said Writ Petition No.102/2009. This Court, after taking note of the order dated 01/08/2011 passed by the Deputy Collector, has observed that no further orders are necessary. No liberty was granted to the petitioners to file fresh writ petitions. The petitioners have suppressed, from this Court that many of the properties belonging to the Comunidade of Bambolim were in fact acquired by the State of Goa. There are various orders

passed by the authorities as well as by the Courts in respect of the acquisition of land bearing Survey No.93 from which an area was acquired and carved out as separate Survey No.93/1. However, the entries in respect of remaining subdivisions bearing Survey Nos.93/2, 93/3 and 93/4 were kept intact. Neither the petitioners nor the Comunidade of Bambolim challenged the said order and the same has attained finality. The name of the predecessor-in-title of Shri Pascoal Trindade was recorded in the Survey Records as the owners of the said properties even prior to promulgation of the records. In terms of Section 105 of the Land Revenue Code, there exists presumption of title in favour of the person in whose name the properties stand recorded.

17. Shri Raghurai Tamba, in his affidavit-in-reply, filed in Writ Petition No.506/2009 has stated as follows :

The petition raises several disputed questions of facts as also question of title to the property which cannot be gone into by this Court in exercise of extraordinary writ jurisdiction. The order dated 20/12/1971 passed by the Mamlatdar is not in relation to the properties bearing Survey Nos.89/3, 90/1, 93/2, 93/3 and 93/4. The said properties

were originally owned by Alexandre Rodrigues/ Maria Conceicao Rodrigues and later passed on to Maximo Mergulhao after which they were inherited by Mrs. Dionisia Dias e Mergulhao. The said properties, amongst others, are Surveyed under Nos. 89/3, 90/1, 93/2, 93/3 and 93/4. The Comunidade has no right, title or interest in the said properties. All the properties in the said locality are known as 'OROS' and there are many other properties existing in that name in the said area. The petitioners have suppressed the communication dated 29/09/2008 addressed by Mr. Carmon U. C. D'Souza to Shri Pascoal Trindade which letter refers to a meeting wherein the members proposed that an amount of Rs. 5710/- per square metre be paid to the Comunidade. The petitioner Noel Monteiro is signatory to the said letter. In the garb of protecting the Comunidade's land (when admittedly the land covered under the said five Survey numbers does not belong to the Comunidade), the petitioners want to extort money and use the litigation to blackmail the said builders. The petitioners have made false statements on oath and, therefore, they have committed offence of perjury. The judgments and decrees passed by the Civil Courts in the civil proceedings have not been challenged in any Forum or Court having jurisdiction to set

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aside the same and, therefore, the petitioners are not entitled to challenge them in the writ jurisdiction and that too after lapse of considerable time. As far as Survey No. 89/3 is concerned, the Deputy Collector and S.D.O., Panaji has conducted inquiry as per the directions issued by this Court in Writ Petition No.7/2000 and order dated 05/09/2000 in Writ Petition No.291/2000 with Writ Petition No.305/2000. After a detailed inquiry, the Deputy Collector has passed an order dated 15/01/2001 concluding that there is no tenancy with respect to Survey No.89/3. The petition is grossly hit by delay and laches since the petitioners are challenging conversion sanad of the year 1993 and the judgments and decrees passed by the Court in the year 1998. The petitioners have nowhere explained as to why there is such a huge delay. The plots in the said properties have been sold, wherein third party rights have been created and, therefore, the petitions are bound to be dismissed. The respondents had filed an application for recall of the ex-parte order dated 18/02/2009 passed by this Court in Writ Petition No.102/2009 on various grounds. The dispute raised by the petitioners does not involve any public interest and it does not involve any interest of the Comunidade. The petitioners are deliberately trying to create confusion in so far as the

judgment and decree dated 06/08/1986 by which the Comunidade of Bambolim has been directed to pay Rs.15,710/- to Raiu Ishwar Gauns on the ground that he is a deemed tenant. The land concerned in the said judgment does not belong to Shri Raghurai Tamba and he is not a party to the same. The said judgment pertains to that part of the earlier total land which was surveyed under Survey No.90/1 and land belonging to Shri Raghurai Tamba has been allotted a separate Survey number pursuant to order dated 15/01/1982 passed by the Statutory Authority under the Goa Land Revenue Code, 1968 whereby a statutory enquiry under Rule 2(2) of the Goa, Daman and Diu Land Revenue (Enquiry into the title of land) Rules 1969, to separate portion of land acquired by the Government admeasuring 25.4250 Hectares from Survey No.93 of Village Bambolim was made. The existing entries of Survey No. 93/2, 93/3 and 93/4 had been retained as per the said order and so called decree for refund of the amount of Rs.15,710/- pertained to that part of Survey No.93/1, which was tenanted land belonging to the Comunidade and held by the tenant Raiu Ishwar Gauns but was not the same land as was purchased by Raghurai Tamba from Mergulhao. The Comunidade of Bombolim and Administrator of Goa, Daman and Diu were

parties to the said proceedings and had accepted the order which has not been challenged. The properties mentioned in the petition do not match with the Survey Records and the boundaries of the properties at loco. On 25/04/2006, three sale deeds were made by the erstwhile owner Mr. Dionisia Dias e Mergulhao in favour of Pascoal Trindade and in these sale deeds, M/s. Raghurai Tamba was a confirming party. The alleged deemed tenants were not even parties to the sale deeds pertaining to Survey Nos. 93/2, 93/3 and 93/4 which lands are in ownership and possession of Mr. Pascoal Trindade. Till date, the sale deeds dated 25/04/2006 have not been challenged. The conversion sanad in respect of Survey No. 89/3 was obtained way back in the year 1993 and no civil suit was filed in respect of Survey No. 89/3. The averments of the petitioners that sanad was issued on the basis of decree in the civil suit is a false statement. In so far as Survey No.89/3 is concerned, the Land Revenue Code proceedings were taken out against tenants upon having realised that in Form No.1 of Survey No.89/3, the names of certain persons namely Manguesh Kankonkar, Smt. Gangà Manguesh Kankonkar, Raiu V. Gauns, Smt. Tulsi R. Gauns were erroneously found recorded in the tenant's column in Form No. I only and not in Form No. III as there were no

tenants at all with regard to the said land. By judgment and order dated 30/04/1992, passed in Appeal No.15/1991, the Administrative Tribunal was pleased to order deletion of the said erroneous entries upon accepting the case of the parties that the said persons were not tenants of the property bearing Survey No.89/3 of village Bambolim.

18. It is stated by the said respondents that the petitioners have not come before the Court without clean hands and they have suppressed various material facts from the Court. According to Pascoal Trindade, by filing petition after petition, relating to the same subject matter, the petitioners are virtually harassing the builders and are stalling the development project thereby resulting into huge monetary loss as well as agony. The petitioners, knowing fully well that they do not have any rights in respect of the land bearing Survey Nos. 93/2, 93/3, 93/4, are filing false and frivolous litigations. None of the statutory rights or fundamental rights of the petitioners are infringed. The petitioners have other alternate and efficacious remedy against the order passed by the learned Deputy Collector. Writ Petition No.657/2011 is also barred by principles of *res judicata* as the reliefs claimed therein are similar to those

claimed in earlier writ petitions.

19. The contesting respondents further say that the petitions also suffer from delay and laches, which are not explained by the petitioners. Various questions of facts, decided by the Deputy Collector in the inquiry, have been disputed by the petitioners, which cannot be gone into in a writ jurisdiction. The petitioners are trying to mislead the Court by mentioning five different properties together. As far as the properties bearing Survey Nos. 89/3 and 90/1 are concerned, they are not only owned by different persons, but are at different locations and the construction work has commenced with necessary permissions in the property bearing Survey No. 89/3. Survey Nos. 93/2, 93/3 and 93/4 are situated at different locations and far away from Survey Nos. 89 and 90. The properties bearing Survey Nos. 93/2, 93/3 and 93/4 are private properties and all the contesting respondents are also individuals.

20. In the Writ Petition No. 506/2009, there are affidavits-in-rejoinder and sur-rejoinder filed by the parties.

21. In the additional affidavit-in-reply filed by Pascoal

Trinidade, in the Writ Petition No. 657/20 he has stated as follows: The petitioners have suppressed the order dated 19/9/2011 passed by this Court in Writ Petition NO. 102/2010. This Court, after taking note of the order dated 01/08/2011 passed by the Deputy Collector, has observed that no further orders are necessary. No liberty was granted to the petitioners to file fresh writ petitions. The petitioners have suppressed from this Court that many of the properties belonging to the Comunidade of Bambolim were in fact acquired by the State of Goa. There are various orders passed by the authorities as well as by the Courts in respect of the acquisition of land bearing Survey No.93 from which an area was acquired and carved out as separate Survey No.93/1. However, the entries in respect of remaining subdivisions bearing Survey Nos.93/2, 93/3 and 93/4 were kept intact. Neither the petitioners nor the Comunidade of Bambolim challenged the said order and the same has attained finality. The name of the predecessor-in-title of Shri Pascoal Trinidade was recorded in the Survey Records as the owner of the said properties even prior to promulgation of the records. In terms of Section 105 of the Land Revenue Code, there exists presumption of title in favour of the person in whose name the properties stand recorded.

22. Heard learned Counsel for the parties and perused the entire material on record.

23. From the records, it is seen that in tenancy cases No. CAJ/ARC/PRC/18/71 and CAJ/ARC/PRC/10 and 11/71, the survey numbers of the property were not mentioned. There is, therefore, dispute whether the said tenancy cases pertained to Survey Nos. 89/3, 93/2, 93/3 and 93/4 or any of them. In Survey Records of Survey Nos. 89/3, 93/2, 93/3 and 93/4, the name of the Comunidade was never recorded as occupant. According to Pascoal Trindade and M/s. Raghurai Tamba, the said properties originally belonged to Alexandre Rodrigues/ Maria Conceicao Rodrigues and later on to Maximo Mergulhao and subsequently Mrs. Dionisia Dias e Mergulhao in whose name they were recorded. In the circumstances above, there is serious dispute about the original title of the said properties. It is well settled that relief under Article 226 of the Constitution is not available to decide the disputes of civil nature. There is alternative remedy for the above by way of civil suit.

24. Admittedly, subsequently, by sale deeds, Shri

Pascoal Trindade and M/s. Raghurai Tamba have purchased the said properties and they are bonafide owners thereof. In fact, it is seen that the said properties have been already developed and third party rights have been created in various plots. The conversion sanads obtained in respect of the said properties have been acted upon long back and are exhausted. Roads, drainages etc., were constructed long back. Approval of the sub-division of plots by the Town planner and final N.O.C. for the said sub-division has been already issued long back. The finally approved sub-divided plots have been sold to various persons, who are already in possession of those plots. Mutations in survey records have been carried out. Constructions have already come up in some of those plots. The owners of the said plots are not made parties to these writ petitions. It is well settled that when other interests have come into being and the persons having these interests are not parties, the extra-ordinary jurisdiction under Article 226 of the Constitution should not be exercised.

25. The orders of the Mamlatdar pertaining to tenancy are dated 20/12/1971 and 10/12/1971. The judgment and decrees of the Civil Courts are dated

06/08/1986 and 20/11/1998. The first Writ Petition i. e. bearing No. 506/2009 has been filed on 11/08/2009. Other Writ Petitions are all filed after that. There is, therefore, gross inordinate delay and laches which have not been explained at all by the petitioners.

26. As per the order dated 5/9/2000, passed by this Court in Writ Petitions NO. 291/2000 and 305/2000, the learned Deputy Collector and S. D. O., Panaji conducted inquiry and he arrived at a conclusion that there was no tenancy in respect of survey no. 89/3 of Bambolim Village, on the day on which Goa Land Use (Regulation) Act came into force.

27. It is seen that as per the order dated 18/2/2009, of this Court in Writ Petition No.102/2009, the learned Deputy Collector and S. D. O., North Goa, had conducted the full fledged inquiry in case No. III/CNV/TIS/19/2009, into the contention of the petitioners that the properties bearing survey nos. 89/3, 90/1, 93/2, 93/3, and 93/4 belong to the Comunidade of Bambolim and that these properties are tenanted lands and in contravention of the provisions of the Agricultural Tenancy Act, Goa Land use (Regulation), Act

and Goa Land (Prohibition on Construction) Act, the constructions are being carried out in these properties. By way of detailed Judgment and Order dated 1<sup>st</sup> August, 2011, the learned Deputy Collector has concluded that property under survey no. 90/1 of village Bambolim is agricultural tenanted land and hence no conversion is permissible in respect of this land. He has held that the properties bearing Survey Nos. 89/3, 93/2, 93/3 and 93/4 were not tenanted lands. It is pertinent to note that in Special Civil Suit No.222/1994/B filed by the Comunidade of Bambolim against Mergulhao since deceased through L.R. Mrs. Dionisia Dias e Mergulhao for a declaration that the property bearing Survey No.89/3 is part of the property named 'OROS' belonging to the Comunidade. Consent terms were filed and a consent decree dated 21/11/1998 was passed under which the Comunidade agreed to take 45 plots in Survey Nos. 93/2, 93/3 and 93/4. If the said properties exclusively belonged to the Comunidade, then, there was no need for settling the matters by taking only 45 plots from that property. It is difficult to believe that the properties bearing Survey Nos. 89/3, 93/2, 93/3 and 93/4 ever belonged to the Comunidade of Bambolim. The tenancy of Raiu Ishwar Gauns is found to be confined to survey no. 90/1. M/s

Raghurai Tamba has purchased the land from survey no. 89/3 which was originally belonging to Maximo Mergulhao whereas Pascoal Trindade has purchased the property under survey nos. 93/2, 93/3 and 93/4. The sale deeds have not been challenged. Admittedly, no development activities have been carried out in the property bearing survey no. 90/1. Be that as it may, questions, if any, are raised about all the above, then those would be really disputed questions and cannot be gone into in writ jurisdiction.

28. The learned Deputy Collector has extensively dealt with the issue of tenancy and has given finding that the cases no. CAJ/ARC/PRC/10-11/71 and CAJ/ARC/PRC-18/71 have nothing to do with the properties bearing Survey Nos. 89/3, 93/2, 93/3 and 93/4. The learned Deputy Collector has considered the validity of the judgments made in Special Civil Suit No.15/2001/A and in Regular Civil Suit No.6/2007/C. The petitioner namely Marvin Gonsalves was examined as RW 1 and he produced several documents before the learned Deputy Collector, but could not produce any evidence to prove that the properties bearing Survey Nos. 89/3, 93/2, 93/3 and 93/4 at any time belonged to the Comunidade. There do not appear to be any error apparent

on the face of the record in the proceedings held by the learned Deputy Collector. The said order of the learned Deputy Collector has not been challenged. The order of the Deputy Collector is well reasoned and if anybody is aggrieved, it will have to be challenged by way of suit. In the Writ Petition No. 102/2010, upon perusal of the said Order dated 1<sup>st</sup> August, 2011, passed by the learned Deputy Collector and S.D.O., Panaji, this Court, by order dated 19/9/2011, observed that no further orders are necessary,

29. In fact, a perusal of the grounds stated in all the writ petitions and the replies reveal that almost all the questions like ownership of Comunidade, tenancy of some of the persons, survey records, orders of competent authorities, decrees of Civil Courts, etc. are disputed. The said orders of tenancy passed by the Mamlatdar and said decrees passed by Civil Courts will have to be set aside by the competent higher authorities and this cannot be done in the present writ petitions. The Writ Jurisdiction, although is wide, however, does not enable the High Court to convert itself into a Court of appeal and examine the correctness of the decisions of the competent authorities.

30. Shri Rohit B. De Sa, learned Counsel for the petitioners, has relied upon the judgment in the case of "Shri Ganapati Devasthan Saunsthan and another Versus The Collector, North Goa and others" [2000(4) All M R 846], wherein it has been held that permission to transfer agricultural tenanted land can be granted only when the land is to be used for agricultural purposes and such transfer can only be to categories of persons set out in section 18J of the Goa, Daman and Diu Agricultural Tenancy Act. It has further been held that the Goa Land Use (Regulation) Act, 1991 prohibits conversion of tenanted agricultural lands. He has also relied upon the judgment in the case of "Balvant and N. Viswamitra and others Versus Yadav Sadashiv Mule (Dead) through LRS and others", [(2004) 8 SCC 706], wherein it has been held that a void decree can be challenged at any stage, even in execution or collateral proceedings. However, in the case (supra), it has been also held that an erroneous or illegal decision which is not void, cannot be objected to in execution or collateral proceedings. He has also relied upon the judgment in the case of "A. V. Papayya Sastry and others Versus Government of A. P. and others", [(2007) 4 SCC 221], wherein it has been held that the judgment, decree or order obtained by fraud has to

be treated as non-est or nullity whether by the Court of first instance or by the final Court and it can be challenged in any Court at any time in appeal, revision, writ or even in collateral proceedings. Lastly, learned Counsel for the petitioners has relied upon the judgment in the case of "Pilerne Citizens Forum Vs. State of Goa through its Chief Secretary and others", [2010 (6) Bom C.R. 594], wherein it has been held that where the Court lacks inherent jurisdiction in passing a decree or making an order, the decree or order passed by such Court, will be without jurisdiction, non-est and void *ab-initio*. It has been further held that a defect of jurisdiction of the Court goes to the root of the matter and strikes at the very authority of the Court to pass a decree or make an order and such defect has always been treated as basic and fundamental and the decree or order passed by a Court or authority having no jurisdiction is a nullity and validity of such decree or order can be challenged at any stage, even in execution or collateral proceedings. The principles laid down in the above citations are not disputed. The above decisions do not help the petitioners. They have not proved that the orders of tenancy passed by the Mamlatdar or the judgments of the Civil Courts which have been challenged, are non-est or ab-initio void. It

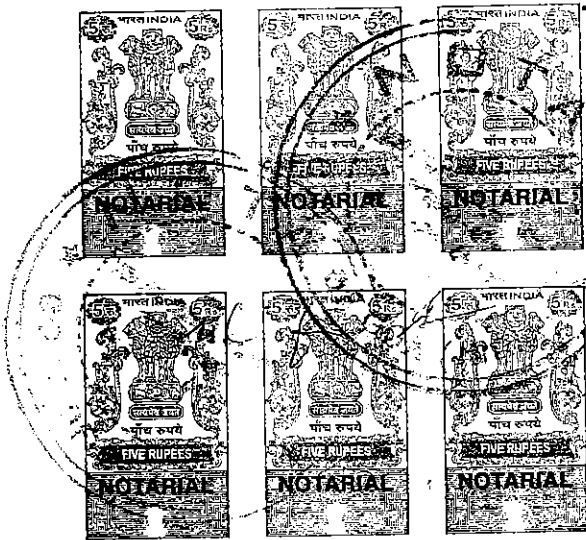
is not shown that the orders of the learned Deputy Collector, passed, after due inquiry, are erroneous. The petitioners have not made out a case in the present writ petitions for application of the principles laid down by the above judgments. Hence, the said citations are not applicable to the present petitions. In "**Pilerne's**" case (supra) the Court proceeded on the basis of undisputed factual position and the questions of fact as noted by us in this case were not involved therein. Hence, that decision is distinguishable. The Petitioners cannot rely upon the above decision unless they are successful in proving their allegations as set out in the petition by approaching competent forums or courts. The inquiry which they desire cannot be undertaken in our limited jurisdiction.

31. In the result, all the Writ Petitions do not bear any substance and are liable to be dismissed without being admitted. Hence, all the Writ Petitions are dismissed, however, with no order as to costs.

S. C. DHARMADHIKARI, J.

U. V. BAKRE, J.

SMA



**TRUE COPY**

*W. F. B.*  
WILFRED A. F. BOADITA  
NOTARY  
PANAJI  
STATE OF GOA (INDIA)

*Fig. No-10975/2013*  
*Dated -19-06-2013*